

Government of the Republic of South Africa v Grootboom

GOVERNMENT OF THE REPUBLIC OF SOUTH AFRICA AND OTHERS v GROOTBOOM AND OTHERS 2001 (1) SA 46 (CC)

Court: Constitutional Court

Judgment: Yacoob J (unanimous)

Facts

Irene Grootboom and others, including children, were evicted from informal homes on private land earmarked for formal housing and left in intolerable conditions on a sports field.

Holding

Section 26 obliges the state to take reasonable legislative and other measures, within available resources, to achieve progressive realisation of the right of access to adequate housing. A housing programme that leaves out of account those in desperate need is not reasonable.

Key principles

- Reasonableness review of socio-economic rights measures.
- Context-sensitive assessment of state programmes.
- Children's rights under s 28 considered but the primary vehicle was s 26.
- International law (ICESCR) used as interpretive aid.

Impact

Blueprint for socio-economic rights adjudication in South Africa; cited in subsequent housing, health and social security cases.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —